

INDIVIDUAL OPINION BY Mr. HUDSON.

While I concur in the judgment of the Court, I should prefer a fuller statement of the reasons for the result reached in regard to one point in this case, and it seems incumbent upon me to add the following observations.

The Netherlands Government has asked the Court to say that the alimentation of certain canals by the Neerhaeren Lock with water taken from the Meuse elsewhere than at Maestricht is contrary to the Treaty of 1863, and to order that Belgium should discontinue that alimentation. On the other hand, the Belgian Government has asked the Court to say that the alimentation of these canals has not become contrary to the Treaty of 1863 by reason of the fact that lock-water discharged by the *bona fide* operation for the passage of boats of the Neerhaeren Lock, which cannot be treated more unfavourably than the Bosscheveld Lock, is confused with water of the Meuse taken by the *prise d'eau* at Maestricht. In its submissions the Belgian Government does not ask the Court to say that the operation of the Bosscheveld Lock results in an alimentation of the canals which constitutes a violation of the Treaty; but the Belgian Agent contends (Counter-Memorial, p. 17) that if the Court should decide that the functioning of the Belgian lock at Neerhaeren is in opposition to the Treaty of 1863, it ought to admit *a fortiori* that the functioning of the Netherlands lock of Bosscheveld is not more regular (*n'est pas non plus régulier*). A further submission of the Belgian Government, offered alternatively (*très subsidiairement*), asks the Court to say that by the construction of works contrary to the provisions of the Treaty the Netherlands has lost the right to invoke the Treaty against Belgium.

On this presentation of the case, the Court must consider the functioning of the Bosscheveld Lock in connection with that of the Neerhaeren Lock. The first question is, therefore, whether the two locks are to be placed on the same footing.

The Bosscheveld Lock is situated in a short canal which may be referred to as the Bosscheveld canal. This canal leads from the Meuse, at a point below Maestricht and one hundred metres below the *prise d'eau* constructed in execution of Article I of the Treaty of 1863, into the Zuid-Willemsvaart Canal. It is entirely in Netherlands territory. It was opened for the passage of boats in 1931, without any previous agreement with the Belgian Government. As the level of the Zuid-Willemsvaart is lower than that of the Meuse, the Bosscheveld Canal contains

a lock which is used for the passage of boats. There are no lateral aqueducts beside this lock, however, and the canal supplies water to the Zuid-Willemsvaart only as a result of the operation of the lock for the passage of boats. With each operation of the Bosscheveld Lock, a considerable quantity of water is discharged from the upper to the lower reach of the canal and thence into the Zuid-Willemsvaart. Many of the boats which would formerly have passed through lock No. 19 at Maestricht in entering the Zuid-Willemsvaart now avoid the use of that lock and pass through the Bosscheveld Canal, thus using the Bosscheveld Lock.

The Neerhaeren Lock is situated in a canal which connects the new Albert Canal with the Zuid-Willemsvaart at Neerhaeren, in what may be referred to as the Briegden-Neerhaeren branch of the Albert Canal. This branch, which is entirely in Belgian territory, was opened to service in 1934. It is supplied with water taken from the Meuse at Monsin in Belgian territory, some twenty-four kilometres above Maestricht. The level of the branch canal being higher than that of the Zuid-Willemsvaart, a lock at Neerhaeren must serve for the passage of boats. This lock is equipped with lateral aqueducts, but they have not been and are not being employed for the supply of water to the Zuid-Willemsvaart apart from the operation of the lock for the passage of boats. While the lock at Neerhaeren is of smaller dimensions than the lock at Bosscheveld, its operation results in the discharge of a considerable quantity of water into the Zuid-Willemsvaart. As the Briegden-Neerhaeren canal serves for the passage of boats going from Liège into the Zuid-Willemsvaart, it may reduce the number of boats using the Bosscheveld Canal.

The Bosscheveld Lock and the Neerhaeren Lock are thus alike, in that the operation of each of them results in supplying to the Zuid-Willemsvaart a considerable quantity of lock-water taken from the Meuse but not by the conventional *prise d'eau*. On the facts, there is no basis for a distinction between them, so long as the lateral aqueducts in the Neerhaeren Lock are used only in connection with the functioning of the lock for the passage of boats.

Is any distinction to be made between the legal positions of the two locks? The action of the Netherlands Government in establishing the Bosscheveld Lock is defended only on the basis of the provision in paragraph 2 of Article V of the Treaty of 1863, which authorizes the Netherlands to increase the amount of water taken from the Meuse at Maestricht. Even if the taking of water into the Bosscheveld Canal can be said to be a taking at Maestricht, it is in no sense an increase

of the amount of water taken by the conventional *prise d'eau* at Maestricht. The words *à puiser à la Meuse à Maastricht* in paragraph 2 of Article V are the equivalent of the words *puisé à la Meuse à Maastricht* and *puisé à Maastricht* in paragraph 1 of the same Article, and of the words *à puiser à la Meuse* in paragraph 1 of Article IV. Hence, paragraph 2 of Article V authorizes the taking of water in excess of the fixed quantity only if the water is taken by the conventional *prise d'eau*. Since the lock-water discharged by the Bosscheveld Lock is not thus taken, paragraph 2 of Article V does not apply, and it affords no reason for distinguishing the legal basis of the Bosscheveld Lock from that of the Neerhaeren Lock.

It must be concluded that, in law as well as in fact, the Bosscheveld Lock and the Neerhaeren Lock are in the same position. The latter cannot be treated more unfavourably than the former. If the discharge of lock-water into the Zuid-Willemsvaart by one of these locks is in accordance with the Treaty, it is equally so with respect to the other lock; if such discharge is a violation of the Treaty as to one lock, it is a violation also as to the other lock.

The question arises, therefore, whether in this case the Court must pronounce upon the legality or the illegality of the alimentation which results from the operation of either the Neerhaeren Lock or the Bosscheveld Lock. If the operation of both locks were thought to be in conformity with the Treaty of 1863, the submissions of the Netherlands Government as to the Neerhaeren Lock would of course be rejected. It remains to be considered whether that result would be reached if the operation of both locks were thought to be in violation of the Treaty of 1863.

There can be no question here as to the good faith of either Party. Each Party has proceeded on its own view of the Treaty of 1863. Each has taken action which has led to the same result, in fact and in law. If the Court were called upon to give judgment on the action of both of the Parties, it could do so with due regard to the equal positions of the Parties; but here it is asked by one Party to condemn the action taken by the other. Aside from the fact that the moving Party is the one whose action preceded that of the other, that the Bosscheveld Lock was put into service in 1931 and the Neerhaeren Lock only in 1934, is this a case in which affirmative relief should be given by the Court? Or should it be said, in the terms of the alternative Belgian submission, that the Netherlands has in some measure *perdu le droit d'invoquer* the Treaty against Belgium?

What are widely known as principles of equity have long been considered to constitute a part of international law, and as such they have often been applied by international tribunals. Mérignhac, *Traité théorique et pratique de l'Arbitrage international* (1895), p. 295; Ralston, *Law and Procedure of International Tribunals* (new ed., 1926), pp. 53-57. A sharp division between law and equity, such as prevails in the administration of justice in some States, should find no place in international jurisprudence; even in some national legal systems, there has been a strong tendency towards the fusion of law and equity. Some international tribunals are expressly directed by the *compromis* which control them to apply "law and equity". See the Cayuga Indians Case, Nielsen's Report of the United States—British Claims Arbitration (1926), p. 307. Of such a provision, a special tribunal of the Permanent Court of Arbitration said in 1922 that "the majority of international lawyers seem to agree that these words are to be understood to mean general principles of justice as distinguished from any particular systems of jurisprudence". Proceedings of the United States—Norwegian Tribunal (1922), p. 141. Numerous arbitration treaties have been concluded in recent years which apply to differences "which are justiciable in their nature by reason of being susceptible of decision by the application of the principles of law or equity". Whether the reference in an arbitration treaty is to the application of "law and equity" or to justiciability dependent on the possibility of applying "law or equity", it would seem to envisage equity as a part of law.

The Court has not been expressly authorized by its Statute to apply equity as distinguished from law. Nor, indeed, does the Statute expressly direct its application of international law, though as has been said on several occasions the Court is "a tribunal of international law". Series A, No. 7, p. 19; Series A, Nos. 20/21, p. 124. Article 38 of the Statute expressly directs the application of "general principles of law recognized by civilized nations", and in more than one nation principles of equity have an established place in the legal system. The Court's recognition of equity as a part of international law is in no way restricted by the special power conferred upon it "to decide a case *ex æquo et bono*, if the parties agree thereto". Anzilotti, *Corso di Diritto internazionale* (3rd ed., 1928), p. 108; Habicht, *Power of the International Judge to give a Decision ex æquo et bono* (1935), pp. 61 *et seq.*; Lauterpacht, *Private Law Sources and Analogies of International Law* (1927), pp. 63 *et seq.* Cf., Monskhéli, "L'équité en droit international moderne", 40 *Revue générale de Droit international public* (1933), p. 347;

Strupp, "Le droit du juge international de statuer selon l'équité", 33 *Recueil des Cours* (1930), pp. 357 *et sqq.* It must be concluded, therefore, that under Article 38 of the Statute, if not independently of that Article, the Court has some freedom to consider principles of equity as part of the international law which it must apply.

It would seem to be an important principle of equity that where two parties have assumed an identical or a reciprocal obligation, one party which is engaged in a continuing non-performance of that obligation should not be permitted to take advantage of a similar non-performance of that obligation by the other party. The principle finds expression in the so-called maxims of equity which exercised great influence in the creative period of the development of the Anglo-American law. Some of these maxims are, "Equality is equity"; "He who seeks equity must do equity". It is in line with such maxims that "a court of equity refuses relief to a plaintiff whose conduct in regard to the subject-matter of the litigation has been improper". 13 *Halsbury's Laws of England* (2nd ed., 1934), p. 87. A very similar principle was received into Roman Law. The obligations of a vendor and a vendee being concurrent, "neither could compel the other to perform unless he had done, or tendered, his own part". Buckland, *Text Book of Roman Law* (2nd ed., 1932), p. 493. The *exceptio non adimpleti contractus* required a claimant to prove that he had performed or offered to perform his obligation. Girard, *Droit romain* (8th ed., 1929), p. 567; Saleilles, in 6 *Annales de Droit commercial*, (1892), p. 287, and 7 *id.* (1893), pp. 24, 97 and 175. This conception was the basis of Articles 320 and 322 of the German Civil Code, and even where a code is silent on the point Planiol states the general principle that "dans tout rapport synallagmatique, chacune des deux parties ne peut exiger la prestation qui lui est due que si elle offre elle-même d'exécuter son obligation". Planiol, *Droit civil*, Vol. 2 (6th ed., 1912), p. 320.

The general principle is one of which an international tribunal should make a very sparing application. It is certainly not to be thought that a complete fulfilment of all its obligations under a treaty must be proved as a condition precedent to a State's appearing before an international tribunal to seek an interpretation of that treaty. Yet, in a proper case, and with scrupulous regard for the limitations which are necessary, a tribunal bound by international law ought not to shrink from applying a principle of such obvious fairness.

On the assumption that the alimentation of canals by the functioning of the Neerhaeren Lock and the Bosscheveld Lock is contrary to the Treaty of 1863, is this a case in which the Court ought to apply the principle referred to? Here the Parties are not before the Court under a special agreement in which they have mutually agreed to seek the Court's interpretation of the Treaty of 1863. This proceeding was instituted by the Netherlands. The jurisdiction of the Court rests on the declarations made by the Parties under paragraph 2 of Article 36 of the Statute. It is the Court's obligatory jurisdiction which is invoked, without challenge by Belgium. If it is important that this jurisdiction should not be attenuated by the action of the Court itself, it is no less important that it be exercised within the limitations which equity imposes. As the moving Party, the Netherlands asks that the Belgian action with respect to the operation of the Neerhaeren Lock be declared contrary to the Treaty of 1863, and that Belgium be ordered to discontinue that action. Yet, in its operation of the Bosscheveld Lock, the Netherlands itself is now engaged in taking precisely similar action, similar in fact and similar in law. This seems to call for an application of the principle of equity stated above.

One result of applying the principle will be that even if the Court should be of the opinion that the Belgian action with regard to the functioning of the Neerhaeren Lock is contrary to the Treaty of 1863, it should nevertheless refuse in this case to order Belgium to discontinue that action. In equity, the Netherlands is not in a position to have such relief decreed to her. Belgium cannot be ordered to discontinue the operation of the Neerhaeren Lock when the Netherlands is left free to continue the operation of the Bosscheveld Lock. The general principle is a sound one that reparation is "the corollary of the violation of the obligations resulting from an engagement between States"; and "it is a principle of international law, and even a general conception of law, that any breach of an engagement involves an obligation to make reparation". Series A, No. 17, pp. 27, 29. Yet, in a particular case in which it is asked to enforce the obligation to make reparation, a court of international law cannot ignore special circumstances which may call for the consideration of equitable principles. Here the Netherlands asks, not for reparation for a past violation of the Treaty of 1863, but for protection against a continuance of that violation in the future. The Court is asked to decree a kind of specific performance of a reciprocal obligation which the demandant itself is not performing. It must clearly refuse to do so.

Is the principle of equity less applicable to the Netherlands' request that the Court declare that the Belgian action is contrary to the Treaty of 1863, when that request is divorced from the prayer for an injunction? There can be no doubt as to the competence of the Court to render declaratory judgments. Series A, No. 7, p. 19; Series A, No. 13, pp. 20, 21. In this respect, it possesses a power analogous to recently-developed powers of national tribunals. In some countries the conditions under which declaratory judgments will be given are carefully formulated. Borchard, *Declaratory Judgments* (1934), ch. 6. The Statute does not prescribe any analogous conditions for the declaratory judgments of the Court.

In some systems of national jurisprudence where the process of sanction is highly developed, a line might be drawn between requests for injunctions and requests for declaratory judgments, the principle of equity being applied to the former but not to the latter. Cf., *Lodge v. National Union Investment Company, Limited* [1907] 1 Ch. 300; *Chapman v. Michaelson* [1909] 1 Ch. 238. In international jurisprudence, however, sanctions are of a different nature and they play a different rôle, with the result that a declaratory judgment will frequently have the same compulsive force as a mandatory judgment; States are disposed to respect the one not less than the other. Hence, as a general rule, it would seem that a principle of equity applicable to a request for an injunction should be applied also to a request for a declaratory judgment. Neither request should be granted where the circumstances are such that the judgment would disturb that equality which is equity. In the circumstances of this case, on the assumption that the operation of both the Neerhaeren Lock and the Bosscheveld Lock is contrary to the Treaty of 1863, the Netherlands would not be entitled to a declaratory judgment for the same reasons that it is not entitled to a mandatory judgment.

Less hesitance need be felt in reaching this result because of facts of which the Court has been apprized in the course of this proceeding. By their action over a period of years, the Parties to the Treaty of 1863 have indicated that they are not satisfied with the situation as it exists under that Treaty. So many changes have taken place—not merely in the regions served by the Meuse and its dependent canals and in the technology for the control of that service, but also as a result of the recent construction of new canals—that the essentially technical arrangement concluded seventy-four years ago seems to have been recognized to be no longer an adequate protection for the Parties' mutual interests. Repeated efforts have been

made by the Parties to negotiate a treaty to replace that of 1863, and according to statements made to the Court, hopes of such a result have not been abandoned. The judgment in this case may better serve to facilitate their future negotiations if it preserves the equality between the Parties.

(Signed) MANLEY O. HUDSON.
